

District then moves to strike Plaintiff's prayer "for costs of suit herein incurred" to the extent that it may include attorney fees. However, the Complaint does not contain any mention of attorney fees.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601687	THOMAS vs ESTATE OF GREGORY JORDAN SR	MOTION FOR ORDER DEEMING ADMITTED TRUTH OF FACTS AND GENUINENESS OF DOCUMENTS

Tentative Ruling:

Plaintiff's Motion for Order Deeming Admitted Truth and Genuineness of Documents is denied.

Requests for Sanctions is denied.

Where a party fails to respond to RFAs, the propounding party may move for an order that RFAs be deemed admitted. (Code Civ. Proc., § 2033.280(b).) "[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein." (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) However, a responding party's service, prior to the hearing on the "deemed admitted" motion, of substantially compliant responses, will defeat a propounding party's attempt under § 2033.280(b) to have RFAs deemed admitted. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 827, *disapproved on other grounds*, *Wilcox*, *supra*, 21 Cal.4th 973, 983, fn. 12.)

Mandatory electronic service applies to "[a] person represented by counsel, who has appeared in an action or proceeding." (Code Civ. Proc., § 1010.6(b)(2).) An unrepresented person in a civil action may receive electronic service "by consent," but express consent must be: given by serving a notice on all parties and filing a notice with the court, or, by "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address." (*Id.*, § 1010.6(c)(1)-(3).)

Here, Plaintiff's proof of service shows only e-mail transmission. (Supplemental Thomas Decl., Ex. B.) Plaintiff's reply concedes that she served the discovery on 7/9/26 only to the email address in that proof of service. (Reply Supp. Thomas Decl., ¶ 3.) The record however does not show a statutory basis for electronic service. Counsel had not appeared for Hodges on 7/9/26. (Choi Decl., ¶ 2.) Plaintiff sent the discoveries only to Hodges's personal email. (*Id.*, ¶ 4.) The record does not contain a filed notice of consent or affirmative consent given through the court or its electronic filing service provider. (CCP § 1010.6(c)(1)-(3).) Defense counsel also declares that no electronic service agreement was in place. (Choi Decl., ¶ 3.) Even if counsel instructed Plaintiff to serve Hodges directly, there was no consent for electronic service. Plaintiff's understanding that she should serve papers at Hodges does not establish that Hodges

consented to e-mail as an authorized method. Contrary to Plaintiff's arguments, counsel's coordination of discovery response dates and the later service of responses do not show that Hodges consented to electronic service. Plaintiff's equitable estoppel argument also fails. There is nothing in the record representing that electronic service are acceptable. As Plaintiff did not validly serve the RFAs, the court need not decide whether the RFA responses comply with CCP §2033.220.

Additionally, the court denies Plaintiff's request for judicial notice of the recorded deed as it is irrelevant to the issues presented in this motion.